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File No.: EXP202210385

RESOLUTION No.: R/00178/2023

Considering the complaint filed on August 26, 2022, with this Agency by Mr. A.A.A., against GOOGLE LLC, for not having duly attended to his request to exercise the rights established in the GDPR. Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 19, 2022, Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure concerning the URLs transcribed in his complaint, against GOOGLE LLC with NIF 770493581 (hereinafter, the respondent), and his request, as stated by the complainant, did not receive the legally established response.

The complainant points out that a Resolution from 2008 was published in the BOE, where the personal data of the complainant and his ID number appear publicly at the URL transcribed in the complaint, without any type of measure or encryption.

It is unknown whether the same occurs in other search engines; therefore, in August 2020, the respondent was requested to remove the data from the search engine or the publications that collect his personal data. In response, the respondent states that they do not remove the content due to its relevance in the professional life.

The complainant's request refers to the removal, from the search results page, of the following URLs:

1. ***URL.1
2. ***URL.2

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

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The representative of the respondent states that the complainant's request was duly denied via email dated September 25, 2020. However, it is reported that their request has been re-examined, and it has been verified that URL 2 does not appear in the results provided by the search engine when searching for the complainant's name, thus satisfying their request.

Regarding URL 1, it is indicated that the published information refers to the professional activity of the complainant as it concerns a list of admitted candidates in a competitive examination.

On the other hand, the respondent considers that blocking the disputed search results could represent a serious interference with the legitimate interest of the public wishing to access that information. It is also indicated that the processing of the complainant's personal data is necessary for the exercise of the right to freedom of expression and information.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the complainant's requests as satisfied. Consequently, on November 14, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period for resolving this procedure, which is understood to have commenced with the aforementioned

admission agreement, will be six months.

The mentioned agreement granted the respondent entity a hearing period, so that within ten working days it could present the allegations it deemed appropriate.

This entity submitted, in summary, the following allegations:

It has been re-examined the request, and it has been verified that URL 2, which refers to a webpage, does not contain any personal data of the complainant or information related to him. Furthermore, it should be noted that the disputed URL does not even appear among the search results when conducting a search based on the interested party's name.

On the other hand, regarding URL 1, the content of the webpage to which the disputed search result refers has been re-examined, and the initial decision has been reconsidered, proceeding with the requested blocking.

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may submit any allegations they consider appropriate:

The complainant points out that no results are shown when entering the name in the Google search engine, but results do appear when entering the ID number.

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Furthermore, it is unknown whether the other search engines also display the results with their personal data, therefore it is requested that the application be extended to these search engines so that they do not show the same or, if applicable, to the original body that publishes the information.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is

not deemed appropriate, whose exceptional nature implies that a decision is made,

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whenever possible, due to the prevalence of alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the published links that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.”

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In the same way, it must be proceeded when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of links by the Internet search service. This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been previously or simultaneously deleted by the same.

As stated in the Supreme Court Judgment of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from the respect for other fundamental rights apply, among which the freedom of information proclaimed by Article 20 of the Constitution is of special relevance.”

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates the Internet user’s access to certain web pages. To do this, the tool accesses a

list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: “By exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, retains on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2(b) of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data.”

Paragraph 33: “However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context, and therefore must be considered responsible for such processing under the aforementioned Article 2(d).”

Paragraph 35: “In this regard, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it.”

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

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Regarding the possibility of exercising the right to erasure before the Internet search engine without resorting to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), stated:

“(…) the processing of data (...) carried out by the operator of a search engine may significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search conducted using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that search engine, would not have been interconnected or could only have been interconnected with great difficulty, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a list of results (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).”

“The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.”

“(…) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained following a search carried out based on the name of a person links to web pages, published by third parties and containing information relating to that person, even in the event that this name or this information is not removed prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the operator of a search engine allows

for a “name” to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for erasure of their personal data to the search engine, it must examine it and proceed, where appropriate, to the removal of the specific links from the list of results, without the need to first or simultaneously contact the website operator. Furthermore, it follows from the above that the conflicting rights and interests must also be weighed in each specific case in order to determine which right prevails.

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For the purpose of carrying out the balancing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that “the so-called 'right to digital forgetfulness', which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not protect the idea that each individual can construct a past to their liking, forcing web page editors or search engine managers to delete the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, 'positioning' the results of Internet searches at their whim, so that the most favorable occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.”

Equally relevant is the doctrine contained in the judgment of the National Court, of June 21, 2019, which specifies, in its fifth legal basis, the following, in relation to the information related to the professional life of the interested party:

“(…) General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the balancing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.”

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on “Google Spain and inc v. AEPD and Mario Costeja” C-131/12), which states: “There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...).”

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When the information refers to private individuals, the Constitutional Court has declared that “even when the news concerning the subject matter pertains to public interest, not all of its content is protected by the freedom of information—in this case, freedom of expression—such that the

transmission of those facts that, within the news, affect the honor or privacy of the concerned individual can be deemed disproportionate, and that are revealed as 'manifestly unnecessary and irrelevant to the public interest of the information'" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court stated in its ruling dated November 8, 2017, the following: "Moreover, unlike the first link, an excessive amount of time has not elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, from the date the news was published (August 2011) to the date the right to cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "Even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when such data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent, or are excessive in relation to these purposes and the time elapsed."

Regarding the criterion of "the public relevance of what is disseminated," the Judgment of the Constitutional Court 89/2022, of June 29, 2022, establishes in Legal Basis 5, section A), that "(...) It should be noted that the concept of 'matters of public relevance' is a concept that this court has been considering as a prerequisite to assess the preponderant value of the public freedoms of information and expression of art. 20 CE, against the right to honor and personal and family privacy of art. 18.1 CE (among others, SSTC 49/2001, of February 26, FJ 6, and 216/2013, of December 29, FJ 5). This criterion is also used, as indicated by the appellant, in STC 58/2018, in which we spoke of the 'right to freely communicate truthful information [art. 20.1 d) CE], which protects the dissemination of facts that deserve to be considered newsworthy as they refer to matters of public relevance that are of general interest due to the subjects they concern, or the individuals involved' (FJ 6).

(...)

To determine whether there exists such a superior public interest, it is appropriate to analogously apply the criteria already developed in our jurisprudence, in which we have determined that the existence of such interest may arise because the affected individual is a public figure or has gained public notoriety, and in this second case, public notoriety may have been achieved through the professional activity they carry out, or by habitually disseminating facts and events from their private life, or they may have acquired circumstantial prominence by being involved in events that enjoy that public relevance (SSTC 99/2002, 6 C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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of May, FJ 7, and 23/2010, of April 27, FJ 5). It is also possible that even if the affected party is not a public figure nor has gained public notoriety, there may exist a public interest in accessing such information as it pertains to a matter of general interest (STC 216/2013, of December 19, FJ 6):

(...)

b) (...) Once the public status of the appellant has been ruled out, it must be determined whether there is an interest in accessing the information based on the subject matter in question. The fact that the information relates to the current work life of the interested party is an element to consider, as highlighted by Google in its submissions, and as noted in the guidelines for the implementation of the STJUE Google Spain, from the Article 29 Working Party on data protection, which state that "the information is more likely to be relevant if it relates to the current work life of the interested party." However, this fact is not decisive because, as those same guidelines indicate, "it will largely depend on the nature of the work itself and the public interest in accessing that information through a search by name" (commentary on criterion 5, page 17).

It is necessary to determine, in the first instance, whether access to what has been published contributes to the formation of a free public opinion (STC 49/2001, of February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end

and that facilitate citizens' ability to freely form their opinions and reasonably participate in public affairs (STC 23/2010, of April 27, FJ 3). If such an interest exists, in any case, it would only extend to that communication whose knowledge is necessary for the real participation of citizens in collective life and that is not formally humiliating (STC 110/2000, of May 5, FJ 8).

(...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as even if the link obtained after a search aimed at the name and surname of that person is removed, such access can always be made through the website where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person.

In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may diverge depending on whether it concerns processing carried out by a search engine manager or by the publisher of that webpage, given that, on the one hand, the legitimate interests justifying these processes may be different, and, on the other hand, the consequences of these processes on the interested party, and in particular, on their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained after a search carried out based on a person's name, of a webpage and the information contained therein relating to this person significantly facilitates the accessibility of that information to any internet user conducting a search about the interested party and can play a decisive role in the dissemination of this in-

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training, may constitute a greater interference in the fundamental right to respect for the private life of the interested party than the publication by the editor of this webpage" (CJEU Google Spain, § 86 and 87) (...)"

Finally, the aforementioned Constitutional Court ruling states regarding the time factor, in its foundation 5, section B), that "(...) Although such news about that criminal procedure may be current, and, consequently, may justify a superior public interest in accessing it, the current nature does not extend to the opinions expressed about the appellant on the complaint portals that do not pertain to those criminal proceedings. (...)"

FIFTH: In the present case, according to documentation in the proceedings, it is observed that the claiming party exercised the right to be forgotten and requested the removal from the search engine of the two URLs, already referenced, considering that the published information refers to professional activity.

The respondent duly denied one disputed URL, and it was communicated that the other did not appear in the list of results after conducting a search using the name of the interested party.

The respondent replied, duly denying the claim, considering that the data is relevant and of public interest and refers to information related to professional activity clearly protected by the freedom of information.

On the part of this Agency, once the allegations and documentation submitted by the respondent were examined, the claim was admitted for processing, inferring a possible violation of the right to erasure and the right to be forgotten in Internet searches.

During the processing of this procedure, the respondent has proceeded to block the questioned URLs that appeared in the search results when entering the name of the claiming party; however, this party states that one URL continues to appear when entering their ID number and is unaware if the other search engines also display results with their personal data, thus requesting this Agency to extend the request to the other search engines so that they do not show the same or, if applicable, to the original body that publishes the information.

On the other hand, this Agency has verified that, when entering the name and surname of the claiming party in the search engine, the questioned URLs do not appear in the list of results on the web

addresses regarding which the erasure is exercised.

Regarding the fact that one of the questioned URLs continues to appear when entering the ID number in the search engine, according to the doctrine established by the Contentious-Administrative Chamber of the National Court, among others in its Judgment of December 29, 2014, and in accordance with the Judgment of the Court of Justice of the European Union of May 13, 2014 (Costeja case), it states that the search is conducted based on the name as a natural person; therefore, the claim for access to the questioned URL by entering the affected party's ID number in the web addresses regarding which the right is exercised cannot be admitted, given that the searches that internet users may carry out should start from the name and surname and not by entering any information that makes them identifiable.

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Regarding the extension of the claim to other search engines and for this Agency to verify that when entering your name in the other search engines, the questioned URLs do not appear, it is important to highlight that the exercise of the right is personalistic, meaning that it is the data subject who must address the search engines they deem appropriate.

Data protection regulations provide affected individuals with several mechanisms for resolving issues related to the processing of their personal data, and they can exercise the right to erasure by contacting the corresponding search engine so that links to the relevant web pages do not appear on the results page when searching by their name and surname. They can also exercise the right to erasure through contact channels by addressing the corresponding search engine to ensure that links to the relevant web pages do not appear on the results page.

In the event that their rights are not addressed, they may request the intervention of this Agency once the one-month period from the receipt of the request has concluded and submit a new claim, providing a copy of the request sent by a means that allows for proof of sending and, if possible, its receipt by the data controller, as well as the response received, if applicable.

Furthermore, it should be noted that it may be the case that the information is not completely removed from the internet, nor is it prevented from appearing in search results based on queries with names different from the claimant or if a search is conducted with similar content. The information will remain available on the website where it was originally published and on other search engines. The webmaster may remove the content from the website or block it from appearing in search engines; therefore, if deemed appropriate, they may submit their request for content removal to the webmaster responsible for the website in question.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected individuals are duly restored, and given that the respondent has proceeded to de-index the questioned URLs during the processing of this procedure, consequently, with the new measures adopted by the respondent, it is appropriate to formally uphold the present claim without the need for additional actions.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A. against the entity GOOGLE LLC. However, the issuance of a new certification by said entity is not warranted, as the questioned URLs have been de-indexed during the processing of this procedure.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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